L. The **City** is considering annexation of the **Annexation Area** which is located within the **City**'s Urban Growth Area, in light of the public benefits associated with the annexation of the property, including assuring an adequate supply of electrical power to the **City**. The **City**'s agreement to the specific provisions of this Pre-Annexation Development Agreement are specifically based upon **PSE** being a publically-regulated utility and the fact that **PSE**'s proposed wetland, wetland buffer and stream buffer disturbance is limited to that amount necessary to install and maintain the electrical utility facilities.

M. The **City** has reviewed an Expanded Environmental Checklist for the actions covered by this Pre-Annexation Development Agreement, and on February 12, 2010, issued a Mitigated Determination of Non-Significance ("**MDNS**"). Site-specific sensitive areas information was included in the information reviewed by the **City** as part of the State Environmental Policy Act documents that contained sufficient information for the **City** to evaluate compliance with the provisions of Snoqualmie Municipal Code ("SMC") 19.12.180(F)(4) for the proposed alteration of the sensitive area buffers for construction of the **Substation Area**, transmission lines, and associated facilities.

N. The **City** has determined that a reduced scope **AIP**, as required by Element 8 of the Snoqualmie Vicinity Comprehensive Plan, is appropriate to address only requirements for development of the **Substation Area** and transmission lines and to ensure adequate SE Douglas Street Right-of-Way for access and extension of utilities to the remainder of the **Annexation Area** beyond the **Substation Area** and to adjacent properties, and to defer additional planning normally contained in an annexation implementation plan until future development is proposed. A public hearing on the **AIP** was held by the City of Snoqualmie Planning Commission on March 1, 2010. The Planning Commission accepted public comment on the **AIP** until March 8, 2010. The Planning Commission conducted its deliberations on the **AIP** on March 1, 2010, April 5, 2010 and May 3, 2010 and recommended approval of the **AIP** to the City Council on May 3, 2010. The City Council approved the **AIP** on June 28, 2010.

O. On May 24, 2010 and June 28, 2010, the City Council held public hearings on the pre-annexation zoning ordinance, as required by RCW 35A.14.340. On June 14, 2010 the **City** held a public hearing on this Pre-Annexation Development Agreement, as required by RCW 36.70B.200. On June 28, 2010, the **City** held a public hearing on the annexation, as required by chapter 35A.14 RCW.

P. This Pre-Annexation Development Agreement is intended to be a development agreement pursuant to the authority of RCW 36.70B.170 – 210. **PSE** and the **City** intend by this Pre-Annexation Development Agreement to define the development standards and mitigations, as defined in RCW 36.70B.170(3) relating to the development of the **Substation Area** and the associated transmission lines, that will apply to the **PSE Property** upon annexation of the **Annexation Area,** including portions of the **PSE Property** that are not being annexed to the **City** at this time. This Pre-Annexation Development Agreement is not intended to authorize development or construction of any uses of the property other than the

Substation Area, transmission lines, and related electrical utility uses. Applicable mitigations identified in the **MDNS** are incorporated into this Pre-Annexation Development Agreement, as provided by RCW 36.70B.170(3)(c). RCW 36.70B.170(4) further authorizes a party to a development agreement to obligate itself to fund or provide services, infrastructure, or other facilities (collectively, "**Mitigations**"). The obligations of **PSE** to fund or provide services, infrastructure, or other facilities established herein are pursuant to authority of RCW 36.70B.170(4) and 36.70B.210.

Q. The parties acknowledge that this Pre-Annexation Development Agreement is intended to be a contract binding upon the parties and their successors and assigns.

Now, therefore, for and in consideration of the mutual covenants and agreements contained in this Pre-Annexation Development Agreement, the parties hereby covenant and agree as follows:

AGREEMENTS

1. ANNEXATION.

Following City Council approval of an ordinance providing zoning to become effective upon annexation, approval of a reduced scope **AIP** for the **Annexation Area**, approval of this Pre-Annexation Development Agreement and approval of the proposed annexation by the Boundary Review Board for King County (or, alternatively, expiration of the statutory appeal period without appeal), the **City** shall consider an ordinance annexing the **Annexation Area**. Upon the effective date of the annexation ordinance, if approved, the development standards and **Mitigations** provided by this Pre-Annexation Development Agreement shall be binding upon the **City** and **PSE**.

2. ZONING.

Upon the effective date of the annexation ordinance, the **Annexation Area** shall be subject to the Residential District Regulations of SMC 17.15, the use classifications for the Planned Residential District (PR) in SMC 17.55, and, more specifically, the additional Planned Residential District provisions of SMC 17.15.050, all pursuant to the ordinance providing zoning to become effective upon annexation. That portion of Parcel No. 3624079102 that is shown as **Future Development Area** on **Exhibit 6** shall be subject to a zoning condition that requires completion of a full-scope **AIP** as specified in Section 4.3 prior to any new utility connections, short plat, subdivision, or other new development in that area. As provided in Section 5.1 below, development on those parcels does not vest to the zoning and development regulations in effect on the date of this Pre-Annexation Development Agreement, but shall vest to whatever regulations are in effect on the date a complete application is filed for such future subdivision or development.

5. DEVELOPMENT STANDARDS.

5.1 Vesting. Except as otherwise specifically provided in this Pre-Annexation Development Agreement, all provisions of the Snoqualmie Municipal Code and the Snoqualmie Ridge II Development Standards in effect as of the date of this Pre-Annexation Development Agreement shall govern development of the **Substation Area** for the substation use proposed in **Exhibit 7**, and construction of the transmission lines shown on **Exhibit 5**; provided, however, the **City** reserves the right to adopt and impose new requirements after the date of this Pre-Annexation Development Agreement that the **City** deems necessary to prevent a serious threat to public health and safety, including amendments to building, fire, and other public safety regulations. This Pre-Annexation Development Agreement does not vest development standards for the **Future Development Area on Parcel No. 3624079102.** Any other development shall be subject to further planning and potential future agreement prior to vesting and, absent some future agreement that provides to the contrary, shall only vest to those regulations that are in effect on the date a complete application is filed for development of the **Future Development Area**.

5.2 Subsequent City Approvals. Development of the **Substation Area** is subject to applicable development permits, including a Public Agency or Utility Exception ("**PAUE**") as set forth in SMC 19.12.030C for any portion of the substation and transmission line development that proposes alteration of any wetland or stream area and their associated buffers as shown in **Exhibit 8** (*Wetland & Stream Buffer Area*). The **PAUE** requires approval by the **City**'s hearing examiner. **PSE** recognizes that this Pre-Annexation Development Agreement cannot bind a particular decision outcome from the hearing examiner, and nothing in this Pre-Annexation Development Agreement is intended to presume the outcome of the hearing examiner's decision on the **PAUE**. If the **PAUE** is approved, the **City** agrees to approve, and **PSE** agrees to record, a Covenant and Easement to provide for ongoing vegetation maintenance over portions of the wetlands, streams, wetland buffer and stream buffer areas and within the native growth protection easement areas, as further described in Section 6.8 of this Pre-Annexation and Development Agreement ("**Covenant and Easement**").

6. MITIGATION MEASURES.

Annexation and development of the **Annexation Area** shall be subject to the following mitigation measures for construction of the **Substation Area**, transmission lines and associated facilities.

6.1 Douglas Street Extension and Right-of-Way. Existing conditions of approval of the Snoqualmie Ridge Binding Site Improvement Plan No. 1 for the Snoqualmie Ridge Business Park and Snoqualmie Vicinity Comprehensive Plan, and Snoqualmie Vicinity Comprehensive Plan Transportation Element Policy 6.F.2.11 require the **City** to conduct a public process to review the impacts from connection of SE Douglas Street to the **Annexation Area** prior to any clearing or construction of an extension of SE Douglas Street. The parties

6.1.2.5 Planter Strips, Street Trees, Tree Planting, Irrigation Specifications, and Street Lights: No planter strip on either side. Irrigation pipe may be required in this Segment, if necessary, to provide irrigation connection to Segment 3.

6.1.2.6 Sidewalks: Six (6)-foot concrete sidewalk on both sides, next to back-of-curb.

6.1.3 Segment 3 Specifications. The following specifications shall apply to Segment 3, as shown on **Exhibit 9, provided that the City may adopt revisions or additions to these standards as part of future annexation implementation planning for the subarea, in which case, such future standards shall apply**. All other relevant Snoqualmie Ridge II Development standards for road construction, marking, and signage not specified below or in any future adoption shall also apply:

6.1.3.1 Right-of-Way Width: A minimum of Sixty-five (65) feet, widening to eighty-three (83) feet at the eastern boundary as shown on **Exhibit 9**.

6.1.3.2 Travel Lanes: Two eleven (11)-foot travel lanes, plus eighteen (18) inches of curb and gutter on south side with no parking; six (6) inches for curb on the north side with eight (8) feet of parking on the north side for a total of thirty-two (32) feet back-of-curb to back-of-curb. The twelve (12)-inch gutter on the north side shall be included within the eight (8)-foot parking area. The curb and gutter shall be constructed according to Snoqualmie Ridge II Development Standard #2.08.

6.1.3.3 Centerline Radius: Three hundred (300) feet.

6.1.3.4 Parking: Eight (8) feet on the north side, adjacent to the **Future Development Area** (included within thirty-two (32) feet in 6.1.3.2 above).

6.1.3.5 Planter Strips, Street Trees, Tree Planting, Irrigation Specifications, and Street Lights: Eight (8)-foot planter strip on both sides. Street trees, tree planting, irrigation specifications, and street lights shall meet whatever standard for street trees, tree planting, irrigation, and street lights that may have been adopted by the **City** prior to or as part of the **AIP** for the **Future Development Area** and other areas within the subarea.

6.1.3.6 Sidewalks: Eight (8)-foot concrete sidewalk on the north side; Six (6)-foot concrete sidewalk on the south side.

6.1.4 Dedication of SE Douglas Street Extension Right-of-Way. PSE shall dedicate the **SE Douglas Street Extension** and the **Future SE Douglas Street Extension Improvements Right-of-Way** for Segments 1, 2, and 3 as described in 6.1.1.1, 6.1.2.1, and 6.1.3.1 located within the **Annexation Area** to the **City** at the time of annexation and as a condition of and prior to substation construction. The **City** agrees to condition any future subdivision of Parcel No. 3624079103 with the requirement to dedicate half of the **SE Douglas Street Right-of-Way** through said parcel, if such subdivision approval occurs prior

functions, restoration, and mitigation requirements where appropriate. The **City** agrees to creation of a **Covenant and Easement**) instead of creation of a separate sensitive area tract solely because of the proposed public utility use of the **PSE Property**. The **Covenant and Easement** (in the form attached hereto as **Exhibit 12**) shall be executed by the parties and placed into escrow with instructions that the **Covenant and Easement** shall be recorded and become binding against the **PSE Property** only when both of the following events have occurred: 1) the **PSE Property** has been annexed to the **City** by ordinance, and any appeals thereof have been resolved, and 2) the **City** has approved a **PAUE** pursuant to SMC 19.12.030(C) authorizing development of the Mount Si Substation and associated transmission lines. In the event one or both of these events does not occur within one year of the date of this Pre-Annexation Development Agreement, then the escrow agent shall return the **Covenant and Easement** to **PSE**. If the **PAUE** requires conditions that are inconsistent with the **Covenant and Easement**, then the **Covenant and Easement** shall be revised, re-executed, and recorded consistent with the **PAUE** conditions prior to commencing construction of the **Substation Area** and transmission line.

6.9 Off-site Mitigation for Wetlands, Streams Wetland Buffer, and Stream Buffer Impacts. Mitigation for impacts to wetlands on site, as shown in **Exhibit 8** will be mitigated by **PSE** by purchasing credits from a State Department of Ecology approved mitigation bank that covers the **Substation Area** project site in its service area, consistent with the **Wetland Mitigation Plan**, attached as **Exhibit 13** *(Proposed Mount Si Substation Wetland Impact Assessment and Mitigation Plan* dated October 2009, *and Addendum* dated February 2010*)*, subject to review and approval by the **City**. Impacts to wetland buffers will be addressed on-site through expansion of wetland buffers into available undisturbed areas, as shown on **Exhibit 13**. The **City** agrees to **PSE**'s purchase of credits at the mitigation banks identified in **Exhibit 13** because there is no additional on-site opportunity for mitigation that provides ecological benefit and because there is currently no comparable mitigation bank option within or more proximate to the property or the City.

6.10 Vegetation Management in Areas Outside of Annexation Area. The **Covenant and Easement** described in Section 6.8 shall also include restrictions regarding vegetation management and replacement associated with construction of the transmission lines as shown on **Exhibit 5** (*BPA Easement and Line Corridor*) located outside the **City** limits to mitigate impacts to existing vegetation from transmission line construction as described in the **MDNS**. Because King County is the permitting authority for this transmission line construction on those parcels that are not being annexed to the **City**, the parties agree that if King County imposes different mitigation for the clearing and grading associated with transmission line construction on Parcel Nos. 3624079098 and 3624079099 than the Business Park Buffer replanting described in the **Covenant and Easement (Exhibit 12)**, then King County's mitigation requirements shall control. The parties further agree that no additional mitigation should be required for the vegetation removal and maintenance associated with construction of the transmission lines on these parcels at the time of any future annexation of those parcels. Additional mitigation may be required if, at the time of annexation, development other than construction or maintenance of the transmission lines is proposed.

STATE OF WASHINGTON)
: ss.
COUNTY OF KING)

I certify that I know or have satisfactory evidence that **MATT LARSON**, is the person who appeared before me, and he acknowledged that he signed this instrument, on oath stated that he was authorized to execute the instrument and acknowledged it as the Mayor of the **City of Snoqualmie**, a Washington municipal corporation, to be the free and voluntary act of such corporation for the uses and purposes mentioned in the instrument.

Dated 28th day of June, 2010.

Notary Public
State of Washington
E JOANN WARREN
My Appointment Expires Sep 15, 2013

[Signature of Notary]

E. Joann Warren
[Print Name]
Notary Public in and for the State of Washington, residing at Maple Valley
My commission expires: 9-15-13.

STATE OF WASHINGTON)
: ss.
COUNTY OF King)

I certify that I know or have satisfactory evidence that R. S. McNulty is the person who appeared before me, and s/he acknowledged that s/he signed this instrument, on oath stated that s/he was authorized to execute the instrument and acknowledged it as the Director Corp. Facilities of **PUGET SOUND ENERGY, INC.**, a Washington corporation, to be the free and voluntary act of such corporation for the uses and purposes mentioned in the instrument.

Dated this 27th day of January, 2011.

UDOMCHAI LERTKANTITHAM
COMMISSION EXPIRES
NOTARY PUBLIC
09-15-14
STATE OF WASHINGTON

[Signature of Notary]

U. Lertkantitham
[Print Name]
Notary Public in and for the State of Washington, residing at Redmond.
My commission expires: 9-15-14.

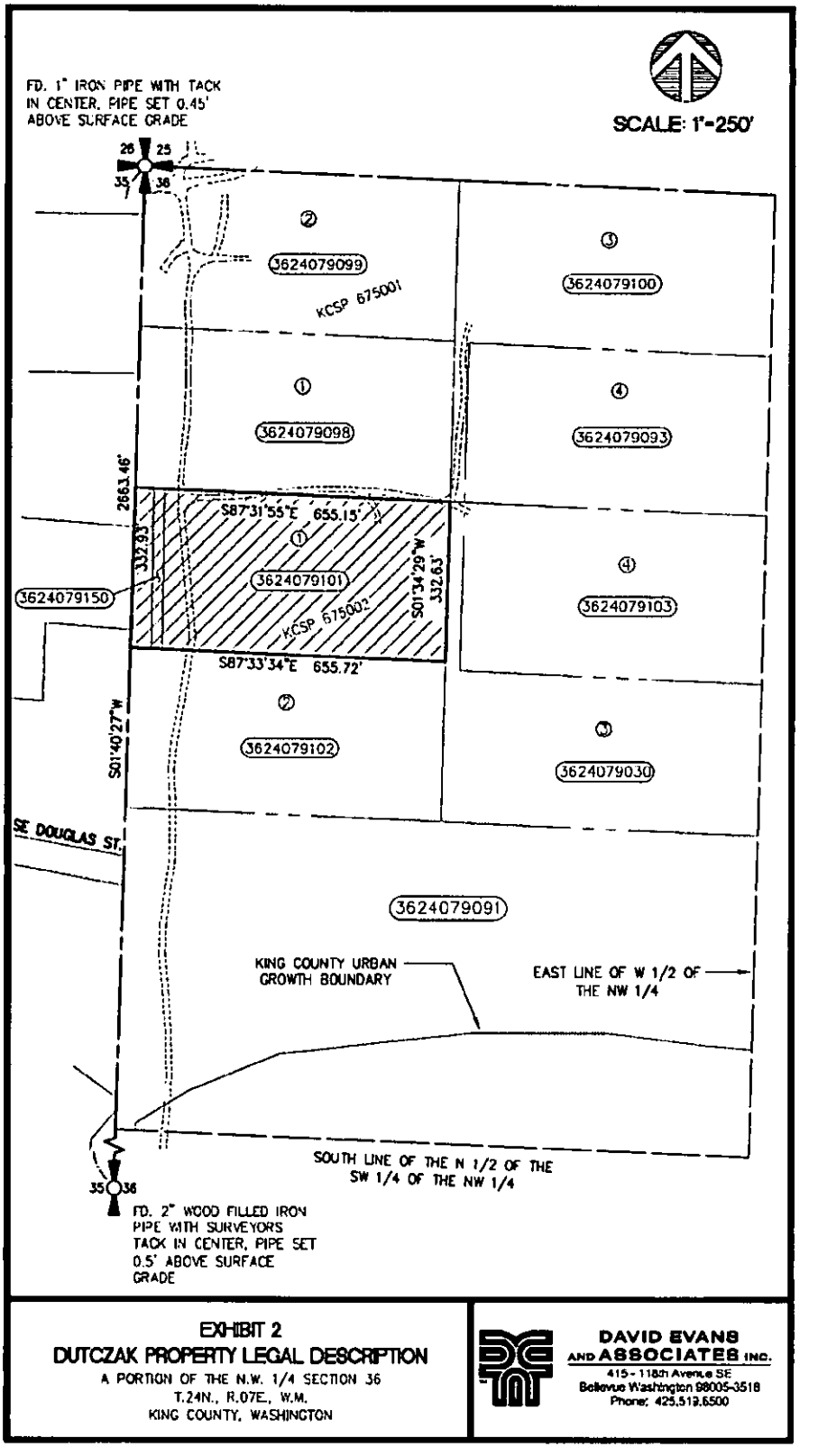

FD. 1" IRON PIPE WITH TACK
IN CENTER, PIPE SET 0.45'
ABOVE SURFACE GRADE
SCALE: 1"=250'
26
25
35
36
3624079099
KCSP 675001
3624079100
3624079098
3624079093
2663.46'
S87°31'55"E 655.15'
332.93'
3624079101
KCSP 675002
S01°34'29"W
332.63'
3624079150
3624079103
S87°33'34"E 655.72'
S01°40'27"W
3624079102
3624079030
SE DOUGLAS ST.
3624079091
KING COUNTY URBAN
GROWTH BOUNDARY
EAST LINE OF W 1/2 OF
THE NW 1/4
SOUTH LINE OF THE N 1/2 OF THE
SW 1/4 OF THE NW 1/4
FD. 2" WOOD FILLED IRON
PIPE WITH SURVEYORS
TACK IN CENTER, PIPE SET
0.5' ABOVE SURFACE
GRADE
EXHIBIT 2
DUTCZAK PROPERTY LEGAL DESCRIPTION
A PORTION OF THE N.W. 1/4 SECTION 36
T.24N., R.07E., W.M.
KING COUNTY, WASHINGTON
DAVID EVANS
AND ASSOCIATES INC.
415 - 118th Avenue SE
Bellevue Washington 98005-3518
Phone: 425.519.6500

EXHIBIT 4
SUBSTATION AREA LEGAL DESCRIPTION

THAT PORTION OF THE WEST HALF OF THE NORTHWEST QUARTER OF SECTION 36, TOWNSHIP 24 NORTH, RANGE 7 EAST, W.M., KING COUNTY, WASHINGTON, DESCRIBED AS FOLLOWS:

COMMENCING AT THE NORTHWEST CORNER OF SAID SECTION, A 1" IRON PIPE WITH A TACK IN PLUG FOUND IN PLACE, FROM WHICH THE WEST QUARTER CORNER OF SAID SECTION, A 2" IRON PIPE WITH TACK AND PLUG FOUND IN PLACE BEARS SOUTH 01°40'27" WEST, 2663.46 FEET DISTANT;
THENCE SOUTH 01°40'27" WEST ALONG THE WEST LINE OF SAID SECTION, A DISTANCE OF 1491.21 FEET TO THE **POINT OF BEGINNING**; THENCE CONTINUING SOUTH 01°40'27" WEST ALONG SAID WEST LINE A DISTANCE OF 506.39 FEET TO THE SOUTH LINE OF THE NORTH HALF OF THE SOUTHWEST QUARTER OF THE NORTHWEST QUARTER OF SAID SECTION;
THENCE SOUTH 87°38'29" EAST ALONG SAID SOUTH LINE A DISTANCE OF 41.35 FEET TO THE 2008 KING COUNTY URBAN GROWTH BOUNDARY LINE AS DEFINED BY KING COUNTY ORDINANCE NO. 16263, AND AS SHOWN ON RECORD OF SURVEY FILED JULY 21, 2010, UNDER RECORDING NO. 20100721900002, RECORDS OF KING COUNTY, WASHINGTON; THENCE ALONG SAID URBAN GROWTH BOUNDARY THE FOLLOWING COURSES:
NORTH 00°48'17" WEST A DISTANCE OF 15.19 FEET;
THENCE NORTH 58°26'30" EAST A DISTANCE OF 128.55 FEET;
THENCE NORTH 67°46'56" EAST A DISTANCE OF 205.15 FEET;
THENCE NORTH 83°41'34" EAST A DISTANCE OF 234.43 FEET;
THENCE NORTH 84°01'25" EAST A DISTANCE OF 164.91 FEET;
THENCE SOUTH 89°57'59" EAST A DISTANCE OF 284.88 FEET;
THENCE SOUTH 82°50'28" EAST A DISTANCE OF 208.74 FEET;
THENCE SOUTH 85°34'05" EAST A DISTANCE OF 90.18 FEET TO THE EAST LINE OF SAID WEST HALF OF SAID NORTHWEST QUARTER;
THENCE NORTH 01°28'31" EAST ALONG SAID EAST LINE OF SAID WEST HALF A DISTANCE OF 442.35 FEET TO THE NORTH LINE OF THE SOUTHWEST QUARTER OF SAID NORTHWEST QUARTER;
THENCE NORTH 87°35'13" WEST ALONG SAID NORTH LINE A DISTANCE 656.29 FEET TO THE EAST LINE OF LOT 2 OF KING COUNTY SHORT PLAT NUMBER 675002, AS FILED UNDER RECORDING NUMBER 7510100717, RECORDS OF SAID COUNTY;
THENCE NORTH 01°34'29" EAST ALONG SAID EAST LINE OF SAID LOT 2 A DISTANCE OF 221.35 FEET TO A NON-RADIAL INTERSECTION WITH AN ARC OF A CURVE CONCAVE TO THE SOUTH FROM WHICH ITS CENTER BEARS SOUTH 15°03'37" EAST 567.50 FEET DISTANT;
THENCE SOUTHWESTERLY ALONG THE ARC OF SAID CURVE THROUGH A CENTRAL ANGLE OF 18°06'36" A DISTANCE OF 179.38 FEET;

EXHIBIT 6
FUTURE DEVELOPMENT AREA LEGAL DESCRIPTION

THAT PORTION OF LOTS 1 AND 2 OF KING COUNTY SHORT PLAT NUMBER 675001, AS FILED UNDER RECORDING NUMBER 7510100716, RECORDS OF KING COUNTY, WASHINGTON, DESCRIBED AS FOLLOWS:

BEGINNING AT THE NORTHEAST CORNER OF SAID LOT 2;
THENCE SOUTH 01°34'29" WEST ALONG THE EAST LINE OF SAID LOTS 1 AND 2 A DISTANCE OF 665.25 FEET TO THE SOUTHEAST CORNER OF SAID LOT 1;
THENCE NORTH 87°31'55" WEST ALONG THE SOUTH LINE OF SAID LOT 1 A DISTANCE OF 273.78 FEET TO A POINT LYING 170.00 FEET EASTERLY OF THE EASTERLY MARGIN OF A BONNEVILLE POWER ADMINISTRATION RIGHT OF WAY AS ESTABLISHED BY INSTRUMENT RECORDED UNDER AUDITORS FILE NO. 6183192, RECORDS OF SAID COUNTY;
THENCE NORTH 00°52'30" EAST ALONG A LINE 170.00 FEET EASTERLY OF AND PARALLEL WITH SAID EASTERLY MARGIN A DISTANCE OF 513.88 FEET;
THENCE CONTINUING ALONG SAID PARALLEL LINE NORTH 09°21'50" EAST A DISTANCE OF 152.84 FEET TO THE NORTH LINE OF SAID LOT 2;
THENCE SOUTH 87°28'37" EAST ALONG SAID NORTH LINE A DISTANCE OF 259.35 FEET TO THE **POINT OF BEGINNING**;

TOGETHER WITH:
THAT PORTION OF LOT 2 OF KING COUNTY SHORT PLAT NUMBER 675002, AS FILED UNDER RECORDING NUMBER 7510100717, RECORDS OF KING COUNTY, WASHINGTON, DESCRIBED AS FOLLOWS:

BEGINNING AT THE NORTHEAST CORNER OF SAID LOT 2;
THENCE NORTH 87°33'34" WEST ALONG THE NORTH LINE OF SAID LOT 2 A DISTANCE OF 269.71 FEET TO A POINT LYING 170.00 FEET EASTERLY OF THE EASTERLY MARGIN OF A BONNEVILLE POWER ADMINISTRATION RIGHT OF WAY AS ESTABLISHED BY INSTRUMENT RECORDED UNDER AUDITORS FILE NO. 6183192, RECORDS OF SAID COUNTY;
THENCE SOUTH 00°52'30" WEST ALONG A LINE 170.00 FEET EASTERLY OF AND PARALLEL WITH SAID EASTERLY MARGIN A DISTANCE OF 211.69 FEET TO A NON-RADIAL INTERSECTION WITH AN ARC OF A CURVE CONCAVE TO THE SOUTHEAST FROM WHICH ITS CENTER BEARS SOUTH 42°55'50" EAST 718.12 FEET DISTANT;
THENCE NORTHEASTERLY ALONG THE ARC OF SAID CURVE THROUGH A CENTRAL ANGLE OF 7°17'31" A DISTANCE OF 91.39 FEET;
THENCE NORTH 35°38'42" WEST A DISTANCE OF 12.50 FEET TO A NON-RADIAL INTERSECTION WITH AN ARC OF A CURVE CONCAVE TO THE

EXHIBIT 12

After recording, return to:

GordonDerr LLP
2025 First Avenue, Suite 500
Seattle, Washington 98121
(206) 382-9540
Attn: Jay P. Derr

WASHINGTON STATE RECORDER'S Cover Sheet (RCW 65.04)

DOCUMENT TITLE(S) (or transactions contained therein): **Covenant and Grant of Easement**
REFERENCE NUMBER(S) OF DOCUMENTS ASSIGNED OR RELEASED: n/a ☐ Additional reference #s on page ____ of document(s)
GRANTOR(S) (Last name first, then first name and initials) **Puget Sound Energy, Inc.** ☐ Additional names on page ____ of document
GRANTEE(S) (Last name first, then first name and initials) **City of Snoqualmie** ☐ Additional names on page ____ of document
LEGAL DESCRIPTION (abbreviated: i.e., lot, block, plat or section, township, range) Portions of the west half of the northwest quarter of Section 36, Township 24, Range 7 East, W.M. ☐ Additional legal is on page ____ of document
ASSESSOR'S PROPERTY TAX PARCEL/ACCOUNT NUMBERS 3624079098, 3624079099, 3624079102, 3624079030, and 3624079091 ☐ Assessor Tax # not yet assigned

Exhibits

Exhibit A: PSE Property

Exhibit B: Dutczak Property

Exhibit C: Perimeter Buffer

Exhibit D: Wetland and Stream Buffer Area

Exhibit E: Vegetation Maintenance Area

Exhibit F: Native Growth Protection Area

Exhibit G: Transmission Line Corridor

Exhibit H: Vegetation Maintenance Activities

Exhibit I: Substation Protection Area

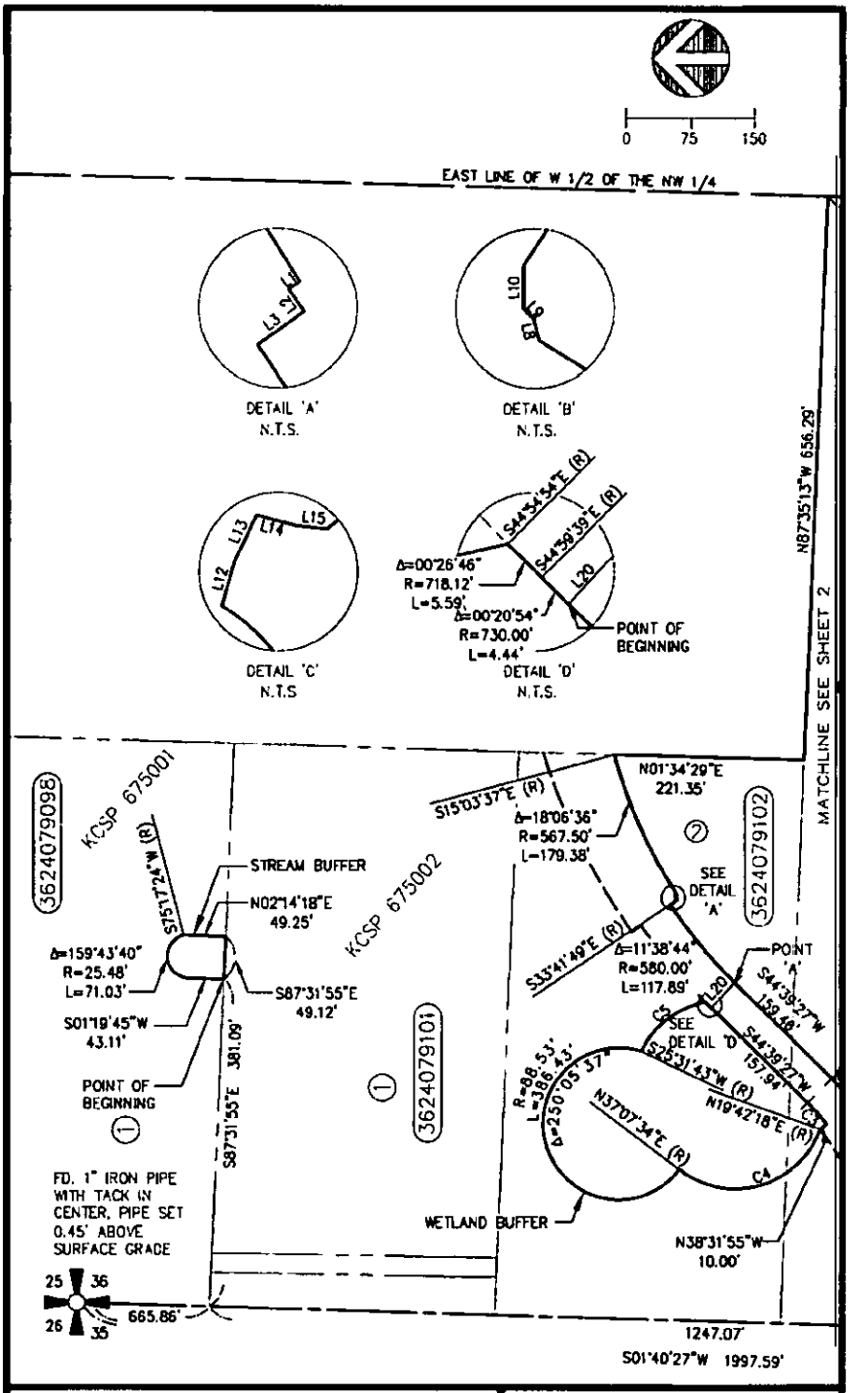


EXHIBIT D (SHEET 1)
WETLAND AND STREAM BUFFER AREA
LEGAL DESCRIPTION
A PORTION OF THE N.W. 1/4 SECTION 36
T.24N., R.07E., W.M.
KING COUNTY, WASHINGTON

DAVID EVANS AND ASSOCIATES INC.
415 - 118th Avenue SE
Bellevue Washington 98005-3518
Phone: 425.519.6500

THENCE NORTH 87°31'55" WEST ALONG SAID SOUTH LINE A DISTANCE OF 220.09 FEET TO SAID EASTERLY MARGIN;
THENCE NORTH 00°52'30" EAST ALONG SAID MARGIN A DISTANCE OF 521.77 FEET;
THENCE NORTH 09°21'50" EAST ALONG SAID EASTERLY MARGIN A DISTANCE OF 145.07 FEET TO THE NORTH LINE OF SAID SECTION AND THE **POINT OF BEGINNING;**

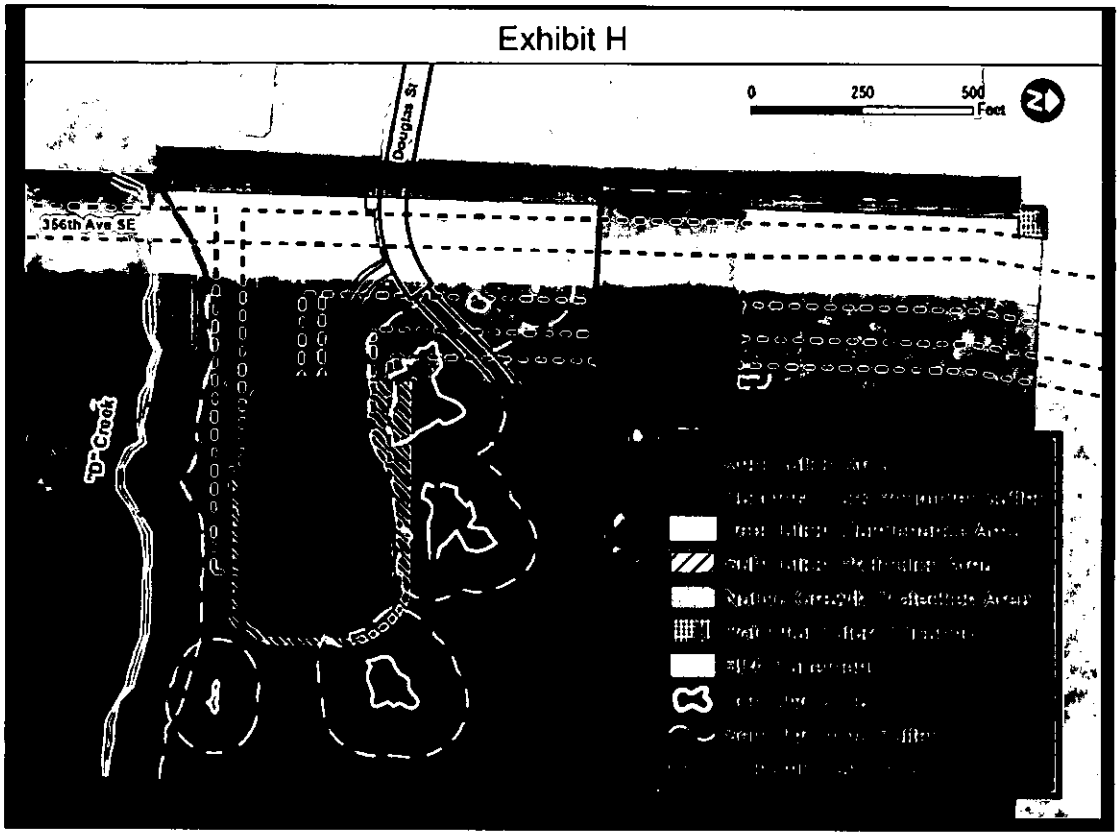
TOGETHER WITH:
THAT PORTION OF THE NORTH HALF OF THE SOUTHWEST QUARTER OF THE NORTHWEST QUARTER OF SECTION 36, TOWNSHIP 24 NORTH, RANGE 7 EAST, W.M., KING COUNTY, WASHINGTON, AND THAT PORTION OF LOT 2 OF KING COUNTY SHORT PLAT NUMBER 675002, AS FILED UNDER RECORDING NUMBER 7510100717 RECORDS OF SAID COUNTY DESCRIBED AS FOLLOWS:

COMMENCING AT THE NORTHWEST CORNER OF SAID SECTION, A 1" IRON PIPE WITH A TACK IN PLUG FOUND IN PLACE, FROM WHICH THE WEST QUARTER CORNER OF SAID SECTION, A 2" IRON PIPE WITH TACK AND PLUG FOUND IN PLACE BEARS SOUTH 01°40'27" WEST, 2663.46 FEET DISTANT;
THENCE SOUTH 01°40'27" WEST ALONG THE WEST LINE OF SAID SECTION, A DISTANCE OF 998.80 FEET TO THE NORTH LINE OF SAID LOT 2 AND THE **POINT OF BEGINNING;**
THENCE CONTINUING SOUTH 01°40'27" WEST ALONG SAID WEST LINE A DISTANCE OF 998.80 FEET TO THE SOUTH LINE OF SAID NORTH HALF;
THENCE SOUTH 87°38'29" EAST ALONG SAID SOUTH LINE A DISTANCE OF 388.43 FEET;
THENCE NORTH 01°40'27" EAST A DISTANCE OF 105.54 FEET;
THENCE NORTH 89°53'51" EAST A DISTANCE OF 205.50 FEET;
THENCE SOUTH 73°55'17" EAST A DISTANCE OF 9.99 FEET;
THENCE SOUTH 71°13'34" EAST A DISTANCE OF 29.84 FEET;
THENCE SOUTH 67°55'15" EAST A DISTANCE OF 54.50 FEET;
THENCE SOUTH 70°24'11" EAST A DISTANCE OF 19.98 FEET;
THENCE SOUTH 84°16'43" EAST A DISTANCE OF 14.51 FEET;
THENCE NORTH 14°24'11" EAST A DISTANCE OF 21.17 FEET;
THENCE NORTH 51°37'49" EAST A DISTANCE OF 27.53 FEET;
THENCE NORTH 61°34'02" EAST A DISTANCE OF 7.76 FEET;
THENCE NORTH 89°53'51" EAST A DISTANCE OF 229.44 FEET;
THENCE NORTH 00°00'14" WEST A DISTANCE OF 47.30 FEET;
THENCE NORTH 85°09'23" EAST A DISTANCE OF 27.51 FEET;
THENCE SOUTH 76°51'19" EAST A DISTANCE OF 14.45 FEET;
THENCE NORTH 01°28'31" EAST A DISTANCE OF 63.95 FEET TO THE 2008 KING COUNTY URBAN GROWTH BOUNDARY LINE AS DEFINED BY KING COUNTY ORDINANCE NO. 16263, AND AS SHOWN ON RECORD OF SURVEY FILED JULY 21, 2010, UNDER RECORDING NO. 20100721900002, RECORDS OF

spacing proposed), Sitka Spruce (a combination of 5'-6' and 8'-10' B&B or container, depending on number and spacing proposed), vine maple, serviceberry and native Dogwood.

b. Native shrubs include a mixture of Red Osier Dogwood, Indian Plum, Red Elderberry, Oregon Grape, Western Hazelnut, Red-flowering Currant, Snowberry, and Nootka Rose. (minimum 12" height, 2 gal container or B&G, with 3 cane minimum. Spacing and grouping to be identified during field verification).

c. Native groundcover includes a mixture of longleaf Mahonia, Salal, Sword Fern. (Minimum of 1 gal container. Spacing and grouping to be identified during field verification).



PLUG FOUND IN PLACE BEARS SOUTH 01°40'27" WEST, 2663.46 FEET DISTANT;
THENCE SOUTH 01°40'27" WEST ALONG THE WEST LINE OF SAID SECTION, A DISTANCE OF 998.80 FEET TO THE NORTH LINE OF SAID LOT 2 AND THE **POINT OF BEGINNING**;
THENCE CONTINUING SOUTH 01°40'27" WEST ALONG SAID WEST LINE A DISTANCE OF 998.80 FEET TO THE SOUTH LINE OF SAID NORTH HALF;
THENCE SOUTH 87°38'29" EAST ALONG SAID SOUTH LINE A DISTANCE OF 41.35 FEET TO THE 2008 KING COUNTY URBAN GROWTH BOUNDARY AS DEFINED BY KING COUNTY ORDINANCE NO. 16263, AND AS SHOWN ON RECORD OF SURVEY FILED JULY 21, 2010, UNDER RECORDING NO. 20100721900002, RECORDS OF KING COUNTY, WASHINGTON; THENCE NORTH 00°48'17" WEST ALONG SAID URBAN GROWTH BOUNDARY A DISTANCE OF 15.19 FEET; THENCE NORTH 58°26'30" EAST ALONG SAID URBAN GROWTH BOUNDARY A DISTANCE OF 19.44 FEET TO THE WESTERLY MARGIN OF A BONNEVILLE POWER ADMINISTRATION RIGHT OF WAY AS ESTABLISHED BY INSTRUMENT FILED UNDER RECORDING NO. 20010410000791, RECORDS OF SAID COUNTY; THENCE NORTH 00°52'30" EAST ALONG SAID WESTERLY MARGIN AS ESTABLISHED BY INSTRUMENTS FILED UNDER RECORDING NUMBERS 20010410000791 AND 20010410000792, A DISTANCE OF 972.98 FEET TO THE NORTH LINE OF SAID LOT 2; THENCE NORTH 87°33'34" WEST ALONG SAID NORTH LINE A DISTANCE OF 43.38 FEET TO THE NORTHWEST CORNER OF SAID LOT 2 AND THE **POINT OF BEGINNING;**

TOGETHER WITH:
THAT PORTION OF THE NORTH HALF OF THE SOUTHWEST QUARTER OF THE NORTHWEST QUARTER OF SECTION 36, TOWNSHIP 24 NORTH, RANGE 7 EAST, W.M., KING COUNTY, WASHINGTON DESCRIBED AS FOLLOWS:

COMMENCING AT THE NORTHWEST CORNER OF SAID SECTION, A 1" IRON PIPE WITH A TACK IN PLUG FOUND IN PLACE, FROM WHICH THE WEST QUARTER CORNER OF SAID SECTION, A 2" IRON PIPE WITH TACK AND PLUG FOUND IN PLACE BEARS SOUTH 01°40'27" WEST, 2663.46 FEET DISTANT;
THENCE SOUTH 01°40'27" WEST ALONG THE WEST LINE OF SAID SECTION, A DISTANCE OF 1997.60 FEET TO THE SOUTH LINE OF SAID NORTH HALF;
THENCE SOUTH 87°38'29" EAST ALONG SAID SOUTH LINE A DISTANCE OF 229.87 FEET TO THE EASTERLY MARGIN OF A BONNEVILLE POWER ADMINISTRATION RIGHT OF WAY AS ESTABLISHED BY INSTRUMENT RECORDED UNDER AUDITORS FILE NO. 6183192 RECORDS OF SAID COUNTYAND THE **POINT OF BEGINNING**;
THENCE CONTINUING SOUTH 87°38'29" EAST ALONG SAID SOUTH LINE A DISTANCE OF 158.56 FEET;
THENCE NORTH 01°40'27" EAST A DISTANCE OF 105.54 FEET;